



CHAPTER lxxv.

An Act to confer further powers on the Corporation of Preston with reference to their water undertaking and for other purposes. A.D. 1904.
[22nd July 1904.]

WHEREAS the mayor aldermen and burgesses of the county borough of Preston (in this Act referred to as "the Corporation") are the owners of waterworks and supply water within the borough of Preston and elsewhere under the powers in that behalf conferred upon them by the Preston Waterworks Act 1853 (herein-after referred to as "the Act of 1853") the Preston Improvement Act 1869 (herein-after referred to as "the Act of 1869") and the Preston Order 1894 confirmed by the Local Government Board's Provisional Orders Confirmation (No. 16) Act 1894 (herein-after referred to as "the Order of 1894") which said Acts and Order are in this Act collectively referred to as "the recited Acts":

And whereas the supply of water from the present waterworks of the Corporation is inadequate to meet the requirements of the inhabitants within the water limits of the Corporation and it is expedient that the Corporation should be empowered as provided by this Act to make and maintain additional works and to acquire by agreement the reservoir known as Crawshaw Reservoir belonging or reputed to belong to the trustees of James Fenton and that further provision should be made in regard to their water undertaking:

And whereas the Corporation have for many years past supplied and now are supplying water within the urban district of Longridge and it is expedient that they should be empowered to continue such supply and for that purpose to break up streets and demand and recover rents rates and charges:

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And whereas by the Order of 1894 the Corporation were authorised with the sanction of the Local Government Board to borrow for the purposes of their water undertaking a further sum of not exceeding in the whole one hundred and fifty thousand pounds in addition to the moneys previously borrowed for those purposes of which the sum of ninety-five thousand five hundred pounds has been borrowed :

And whereas it is expedient that the rates for the supply of water prescribed by section 39 of the Act of 1853 should be increased :

And whereas the objects of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the purposes herein-after mentioned and those estimates are as follows :—

For and in relation to waterworks purposes including the purchase of the lands for and the construction of the works by this Act authorised - - - - -	£ 88500
For the completion of the Alston New Reservoir and the purchase of lands at Alston - - - - -	18500
For the extension enlargement renewal and improvement of water mains pipes and works - - - - -	74000
For the laying and replacing of mains for the purposes of the supply to Longridge - - - - -	2000
For the purchase of the Crawshaw Reservoir - - - - -	8000

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken compulsorily for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the County Palatine of Lancaster and are in this Act respectively referred to as the deposited plans sections and book of reference :

And whereas an absolute majority of the whole number of the Council at a meeting held on the twelfth day of November one thousand nine hundred and three after ten clear days' notice by public advertisement of such meeting and of the purpose

thereof in the Preston Guardian a local newspaper published and circulating in the borough such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the water rates and water revenue and the district fund and general district rate : A.D. 1904.

And whereas such resolution was published twice in the Preston Herald a local newspaper published and circulating in the borough and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the Council at a further special meeting held in pursuance of a similar notice on the twenty-eighth day of January one thousand nine hundred and four being not less than fourteen days after the deposit of the Bill in Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule to the Borough Funds Act 1903 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

1. This Act may be cited as the Preston Corporation Water Act 1904 and the recited Acts and this Act may be cited together as the Preston Corporation Water Acts 1853 to 1904. Short title.

2. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act namely :— Incorporation of Acts.

(1) The Waterworks Clauses Acts 1847 and 1863 except—

(A) The words "with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner" in section 44 of the Waterworks Clauses Act 1847 ;

(B) Sections 75 to 82 of the Waterworks Clauses Act 1847 with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and section 83 relating to accounts :

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(2) The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845) :

(3) The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and in such provisions for the purposes of this Act "the railway" means the reservoir works authorised by this Act and "the centre of the railway" means the centres of so much of such works as aforesaid.

Interpretation.

3. The several words and expressions to which by the Acts incorporated with this Act meanings are assigned have in this Act the same respective meanings unless there is something in the subject or context repugnant to such construction :

And in this Act unless the context otherwise requires—

"The Corporation" means the mayor aldermen and burgesses of the county borough of Preston ;

"The borough" means the county borough of Preston ;

"The council" means the council of the borough ;

"The town clerk" means the town clerk of the borough ;

"The water rates" "the water revenue" "the district fund" and "the general district rate" mean respectively the water rates and the water revenue of the Corporation and the district fund and the general district rate of the borough ;

"Statutory security" means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security (not being annuity certificates rentcharges or securities payable to bearer) authorised by or under any Act of Parliament (passed or to be passed) of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 other than securities of the Corporation.

Power to acquire reservoir lands and waters.

4. Subject to the provisions of this Act the Corporation may enter upon take use and hold for the purposes of their water undertaking the reservoir known as Crawshaw Reservoir and the lands connected therewith shown on the deposited plans

and described in the deposited book of reference relating thereto together with all springs waters water rights and other rights interests and easements in and connected with the said reservoir and lands and with the brook known as Dean Brook and its tributaries and the lands forming the gathering ground or drainage area adjacent or near thereto and to the said reservoir including all necessary easements for lines of pipes and works from Dean Brook to Moor Heys or Cowley Brook and through certain lands known as College Lands belonging or reputed to belong to the trustees of Stonyhurst College all of which lands springs and waters are situate in the parishes of Ribchester Dutton and Aighton Bailey and Chaigley in the County Palatine of Lancaster.

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5. Subject to the provisions of this Act the Corporation may in the County Palatine of Lancaster and in the lines and situations and upon the lands delineated on the deposited plans and described in the deposited book of reference and according to the levels shown on the deposited sections make and maintain the following works and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for those purposes (that is to say):—

Power to
make water-
works.

- (1) An enlargement of Spade Mill Reservoir by extending the same in a northerly direction and a deepening of the said reservoir by excavation and by raising of the height of the embankment thereof to the extent of three feet or thereabouts:
- (2) An excavation and deepening to the extent of two feet or thereabouts at the north-eastern end of the reservoir known as the Crawshaw Reservoir:
- (3) A new service reservoir to contain about four million gallons of water contiguous to the present Dilworth Reservoir and situate on the south-west side thereof:
- (4) A conduit or line of pipes (No. 1) commencing at the easterly end of the present conduit in Knowle Green and terminating at the southern end of the culvert through which Dean Brook flows under the highway leading from Longridge to Clitheroe:
- (5) A conduit or line of pipes (No. 2) commencing on Conduit (No. 1) at a point 290 yards or thereabouts measured in a north-easterly direction from Green Go

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Farm House and terminating at the outlet from Crawshaw Reservoir :

- (6) A conduit or line of pipes (No. 3) commencing on Conduit (No. 1) at a point 545 yards or thereabouts measured in a south-westerly direction from the termination of that conduit as above described and terminating at the inlet to Crawshaw Reservoir :
- (7) A conduit or line of pipes (No. 4) commencing on Conduit (No. 1) at a point 280 yards or thereabouts measured in a north-easterly direction from the end of the present conduit in Knowle Green and terminating at a point on Cowley Brook 33 yards or thereabouts measured in a northerly direction from where such brook passes under the highway leading from Longridge to Clitheroe :
- (8) A conduit or line of pipes (No. 5) commencing at the easterly corner of the proposed new service reservoir at Dilworth and terminating on Conduit (No. 1) at a point 133 yards or thereabouts measured in an easterly direction from the end of the present conduit in Knowle Green :
- (9) A conduit or line of pipes (No. 6) commencing on the south-easterly side of the present Dilworth Reservoir at a point about 250 yards or thereabouts from the south-east corner of such reservoir and terminating in Conduit (No. 5) at the junction of the highway leading from Longridge to Clitheroe with Written Stone Lane.

Power to
make sub-
sidiary
works.

6. The Corporation in addition to the foregoing works may upon any lands for the time being belonging to them or over or in respect of which they may have or acquire rights or easements make maintain alter renew and repair all such wells boreholes adits tunnels drifts shafts reservoirs roads railways sidings tanks basins gauges meters filters filter beds softening tanks dams sluices hatch boxes chambers outfalls discharge pipes aqueducts culverts cuts channels conduits mains pipes hydrants stand-pipes junctions valves telegraphs telephones engines pumps machinery apparatus appliances buildings houses chimney shafts ventilating shafts air valves water towers washouts works and other appliances necessary or convenient in connexion with the before-mentioned works or any of them or necessary or convenient for inspecting maintaining repairing cleansing managing

working and using the same or required for any of the purposes of the water undertaking of the Corporation but nothing in this section shall exonerate the Corporation from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them. A.D. 1904.

7. In the construction of the works authorised by this Act the Corporation may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits and they may also deviate vertically from the levels shown on the deposited sections in the case of the reservoirs to any extent not exceeding three feet upwards and five feet downwards and in the case of all other works to any extent not exceeding three feet upwards and ten feet downwards. Power to deviate.

The Corporation shall not construct any embankment or wall of any reservoir of a greater height above the general surface of the ground than that shown on the deposited sections in respect of the corresponding embankment or wall and three feet in addition.

Except for the purposes of crossing over a stream no part of the pipes shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections.

8. In addition to the other lands which the Corporation are by this Act authorised to enter upon take and use they may enter upon take and use the lands and buildings in the parish of Alston in the urban district of Longridge shown on the deposited plans and described in the deposited book of reference relating thereto and lying on the east side of and adjoining the main road from Preston to Longridge and on the west side of and adjoining the Alston Reservoir. Power to acquire lands at Alston.

9.—(1) The Corporation may in lieu of acquiring any lands for the purpose of laying any conduit or pipe underground under the authority of this Act acquire such easements and rights in such lands as they may require for the purpose of making maintaining cleansing and repairing the said works and may give notice to treat in respect of such easements and rights and may in such notice describe the nature thereof and the several provisions of the Lands Clauses Acts (inclusive of those with regard to limited owners and to arbitration and the summoning of a jury) shall apply to such easements and Power to acquire easements only.

A.D. 1904. rights as fully as if the same were lands within the meaning of those Acts.

(2) Provided that nothing in this section contained shall authorise the Corporation to acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Corporation to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat for the acquisition of an easement shall be endorsed with notice of this provision.

(3) Provided also that as regards any lands taken or used by the Corporation for the purpose of such works where they are respectively laid underground the Corporation shall not (unless they purchase such lands and not merely easements or rights therein) be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall at all times after the completion of the works have the same rights of passing over such lands for all purposes of or connected with the use or enjoyment of the adjoining lands as if such lands had not been taken or used by the Corporation.

Period for
compulsory
purchase of
lands.

10. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Period for
completion
of works.

11. If the works authorised by the section of this Act the marginal note whereof is "Power to make waterworks" are not completed within seven years from the passing of this Act then on the expiration of that period the powers by this Act granted for the making thereof respectively or otherwise in relation thereto shall cease except as to such of them or so much thereof respectively as shall then be completed. Provided that the Corporation may extend enlarge alter reconstruct renew or remove any of their works and plant and in the case of the conduits authorised by this Act lay down additional lines of pipes as and when occasion may require.

Power to
purchase
additional
lands by
agreement.

12. The Corporation in addition to any other lands acquired by them in pursuance of this Act may purchase and acquire by agreement and may take on lease and hold further lands or easements in under or over the same which may be required for the purposes of this Act or of or in connexion with their water undertaking but the quantity of lands held by the Cor-

poration in pursuance of this section shall not at any time exceed forty acres Provided that the Corporation shall not create or permit the creation or continuance of any nuisance on any such lands nor erect any buildings thereon except offices and dwellings for persons in their employ and such buildings and works as may be incident to or connected with their water undertaking.

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13. For the purpose of protecting any of their waters and waterworks against pollution contamination nuisance encroachment or injury the Corporation may purchase and acquire by agreement and may take on lease and hold any lands in over or through which any waters which the Corporation are for the time being authorised to intercept collect impound take use divert or appropriate arise or flow or any easements in under or over any such lands and may in and upon any such lands construct and lay down drains sewers watercourses and other works and conveniences necessary or proper for the purpose of intercepting or taking all foul waters arising or flowing in or over such lands or necessary or proper for preventing the water which the Corporation are empowered to take from being polluted fouled contaminated or discoloured and the Corporation may for the purposes aforesaid carry any such drain sewer or watercourse under across or along any street or road within or adjoining the said lands subject and according to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes.

Power to purchase lands and exercise powers for protection of waters and waterworks.

14. From and after the passing of this Act the provisions of the two last preceding sections and of the section of this Act whereof the marginal note is "Power to make subsidiary works" shall be substituted for the provisions of subsection (1) of Article I of the Order of 1894.

Amending Article I. of Order of 1894.

15. Subject to the provisions of this Act the Corporation may for the purposes of their water undertaking collect impound take use divert and appropriate the waters of the Dean Brook and all tributaries and streams flowing into that brook and all streams springs and waters which can be taken or intercepted by the waterworks authorised by this Act.

Power to appropriate waters.

16. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the

Persons under disability may

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grant ease-
ments &c.

provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to
sell lands.

17. Notwithstanding the provisions of the Lands Clauses Consolidation Act 1845 with respect to the sale of superfluous lands the Corporation may sell lease and otherwise dispose of any lands for the time being belonging to them and not required for the purposes of their water undertaking and may reserve to themselves all or any part of the water rights or other easements belonging thereto and may make the sale subject to such reservations accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions with respect to the use of water exercise of noxious trades or discharge or deposit of manure sewage or other impure matter and otherwise as they may think fit.

Temporary
discharge of
water into
streams.

18.—(1) For the purpose of sinking any well or constructing enlarging extending repairing cleansing or examining any of their aqueducts conduits reservoirs or works the Corporation may cause the water in any such well aqueduct conduit reservoir or work to be temporarily discharged into any available stream or watercourse.

(2) In the exercise of the power conferred by this section the Corporation shall do as little damage as may be and shall pay compensation to all persons for all damage sustained by them by the exercise of such power the amount of compensation to be settled in default of agreement by arbitration in accordance with the provisions of the Arbitration Act 1889.

Application
of Water-
works
Clauses Act
1847 to con-
duits dis-
charge pipes
and tele-
phones.

19.—(1) The provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets shall apply with the necessary modifications to the construction laying down erection and maintenance in any streets or roads as well of the conduits by this Act authorised as of any discharge pipes telephone or telegraph posts wires conductors or apparatus which the Corporation are authorised to erect or lay down for the purposes of their water undertaking.

(2) Provided that no telephonic or telegraphic apparatus made and maintained under the authority of this Act shall be used for the purpose of transmitting telegrams in contravention of the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869. A.D. 1904.

20.—(1) Whenever the Corporation shall require to lay down alter repair enlarge or replace any conduits discharge pipes telephone or telegraph posts wires conductors or apparatus upon across over or under any railway for the time being belonging to or worked by the Lancashire and Yorkshire Railway Company (in this section called “the company”) or the bridges approaches or other works thereof or to construct any works adjoining or in close proximity to any such railway they shall give to the engineer of the company fourteen days’ notice in writing of their intention to carry out any such works accompanied by sufficient plans. For protection of Lancashire and Yorkshire Railway Company.

(2) Such works including the making good and repairing any roads over the railway and over any bridges and approaches which the company is or may be liable to maintain and which may be disturbed or interfered with by or owing to any operations of the Corporation shall be laid constructed and executed by and at the expense of the Corporation under the superintendence and to the reasonable satisfaction of the principal engineer of the company and according to plans to be previously reasonably approved by him and so as not to cause any injury to any such railway or any of the works thereof or interruption to the passage or conduct of the traffic over any such railway.

(3) When the Corporation open or break up any road or pavement of any street or bridge or other works belonging to or repairable by the company they shall with all convenient speed complete the work for which the same shall be broken up and reinstate and make good the road or works so opened or broken up and shall keep any road or pavement so broken up in good repair for three months after replacing and making good the same and for such further time if any as the soil so broken up shall continue to subside.

(4) If the Corporation make delay in completing such work or reinstating and making good such road so opened or broken up or neglect to keep the road in repair as aforesaid the company may cause the work so delayed or omitted to be executed and the expense of executing the same shall be repaid to them by the Corporation.

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(5) The Corporation shall repay to the company the expense of any temporary works or watching which the company may consider reasonably necessary to provide for the protection of the said railway or the traffic thereon during the carrying out of the works over under upon or adjoining the railway or property of the company.

(6) If any injury shall owing to or by reason of any of the matters aforesaid arise to any such railway or works or interruption to such traffic the Corporation shall make full satisfaction in respect thereof to the company and in the event of any dispute as to the amount of such satisfaction the same shall be determined by arbitration in manner herein-after provided.

(7) Any difference which may arise between the Corporation and the company under the provisions of this section shall be settled by arbitration under the provisions of the Arbitration Act 1889 by an engineer to be appointed by the President of the Institution of Civil Engineers at the request of either party.

Works to
form part of
undertaking
and recited
Acts to
apply.

21. The works by this Act authorised to be constructed or acquired shall for all purposes be deemed part of the water undertaking of the Corporation and the provisions of the recited Acts so far as the same are applicable and subject to the provisions of this Act shall extend and apply to the said works.

Rates for
supply of
water.

22.—(1) From and after the passing of this Act section 39 of the Act of 1853 shall be and the same is hereby repealed and the provisions of subsection (2) of this section shall be substituted therefor.

(2) The Corporation shall at the request of the owner or occupier of any dwelling-house or part of a dwelling-house entitled under the provisions of the recited Acts or this Act to demand a supply of water for domestic purposes furnish to such owner or occupier a sufficient supply of water for such domestic purposes at rates not exceeding the rates per annum herein-after specified (that is to say):—

Where the annual rateable value of such house shall not exceed twenty pounds at a rate per centum per annum not exceeding seven pounds ten shillings:

Where the annual rateable value of such house shall exceed twenty pounds but shall not exceed forty pounds at a rate per centum per annum not exceeding seven pounds:

Where the annual rateable value shall exceed forty pounds but shall not exceed eighty pounds at a rate per centum per annum not exceeding six pounds ten shillings : A.D. 1904.

Where the annual rateable value shall exceed eighty pounds but shall not exceed one hundred and sixty pounds at a rate per centum per annum not exceeding six pounds :

Where the annual rateable value shall exceed one hundred and sixty pounds at a rate per centum per annum not exceeding five pounds.

The rateable value of any such premises as aforesaid shall be ascertained by the valuation list in force at the commencement of the quarter for which the rate accrues or if there is no such list in force by the last rate made for the relief of the poor. Provided that where the water rate is chargeable on the rateable value of a part only of any hereditament entered in the valuation list such rateable value shall be a fairly apportioned part of the rateable value of the whole tenement ascertained as aforesaid the apportionment in case of dispute to be ascertained by a court of summary jurisdiction.

In addition to the foregoing charges the Corporation may charge in respect of every watercloset beyond the first (for which no additional charge shall be made) on any premises within the limits of the recited Acts or of this Act a sum not exceeding five shillings per annum and for every fixed bath capable of containing not more than fifty gallons a sum not exceeding seven shillings and sixpence per annum and for every fixed bath capable of containing more than fifty gallons such sum as the Corporation may think fit. such additional sum to be paid quarterly in advance and to be recoverable in all respects with and as the water rate.

Nothing in this section shall entitle the Corporation in any case to demand for the water rate for any house or part of a house included in any division of the above scale a greater sum than they would be entitled to demand if the house or part thereof were of just sufficient rent or value to bring it within the next division of the said scale relating to premises of a higher rent or value whereon a lower rate per centum is chargeable.

23. The Corporation may subject as herein-after provided afford a supply of water for domestic purposes within the urban district of Longridge and may make and recover in respect of such supply the rates rents and charges which they are for the

Supply of
water in
Longridge
for domes-
tic purposes.

A.D. 1904. time being authorised to demand and recover in respect of a supply of water for the like purposes within the limits of supply of the Corporation and the provisions of the Waterworks Clauses Acts 1847 and 1863 and of the recited Acts and of this Act so far as they respectively relate to the breaking up of streets for the purpose of laying pipes to the guarding against fouling water to the payment and recovery of water rates and to the waste or misuse of water shall apply to any supply so afforded Provided that the Corporation shall not be compelled to supply water under the provisions of this section from any source other than the Dean and Cowley Brooks and the Dilworth Reservoir of the Corporation And provided also that no such supply shall be afforded so as to interfere with any other supply of water by the Corporation under the recited Acts or this Act.

Supply of water in Longridge for trade purposes.

24. The Corporation may exercise within the urban district of Longridge all the powers conferred by section 14 of the Act of 1853.

Power to borrow.

25. The power to borrow the sum of one hundred and fifty thousand pounds conferred upon the Corporation by the Order of 1894 so far as the same has not yet been exercised is hereby repealed and the Corporation may from time to time in addition to any moneys which they have already borrowed or which they may be authorised to borrow under the provisions of the Public Health Acts or any public general Act borrow at interest any sums not exceeding the following sums :—

On the security of the water rates and water revenue and the district fund and general district rate—

(A) For paying the costs charges and expenses of and in relation to this Act as herein-after defined the sum requisite for the purpose :

On the security of the water rates and water revenue and the district fund and general district rate the sum of one hundred and ninety-one thousand pounds for waterworks purposes as follows —

(B) For and in relation to waterworks purposes including the purchase of the lands for and the construction of the works by this Act authorised the sum of eighty-eight thousand five hundred pounds ;

(C) For the completion of the Alston New Reservoir and the purchase of lands at Alston eighteen thousand five hundred pounds ;

(D) For the extension enlargement renewal and improvement of water mains pipes and works the sum of seventy-four thousand pounds; A.D. 1904.

(E) For the laying and replacing of mains for the purposes of the supply to Longridge the sum of two thousand pounds;

(F) And for the purchase of the Crawshaw Reservoir the sum of eight thousand pounds:

And with the consent of the Local Government Board such further money as may be necessary for any of the purposes of this Act.

In calculating the sums which the Corporation may borrow under the provisions of any other enactment any sums they may borrow under this Act shall not be reckoned and the powers of the Corporation as to borrowing and re-borrowing under this Act shall not be restricted by any of the provisions of the Public Health Acts.

26. The Corporation may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another Provided that the provisions of this Act whereof the marginal note is "Sinking fund" shall apply in lieu of the provisions of section 15 of the Local Loans Act 1875. Mode of raising money.

27. The following sections of the Public Health Act 1875 (that is to say):— Provision as to mortgages.

Section 236 (Form of mortgage);

Section 237 (Register of mortgages);

Section 238 (Transfer of mortgages);

shall extend and apply to and in relation to all mortgages made under the powers of this Act.

28. The Corporation shall pay off all moneys borrowed by them under this Act within the respective periods (in this Act referred to as "the prescribed periods") following (that is to say):— Periods for payment off of money borrowed.

As to moneys borrowed for the purpose (A) mentioned in the section of this Act whereof the marginal note is "Power to borrow" within five years from the date of the passing of this Act;

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As to moneys borrowed for the purposes (B) (C) and (F) mentioned in the said section within sixty years from the date or dates of borrowing the same :

As to moneys borrowed for the purposes (D) and (E) mentioned in the said section within forty years from the date or dates of borrowing the same :

As to moneys borrowed with the sanction of the Local Government Board within such periods respectively as that Board may sanction.

Mode of
payment off
of money
borrowed.

29. The Corporation shall pay off all moneys borrowed by them under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest or by means of a sinking fund or partly by such instalments and partly by a sinking fund and the payment of the first instalment or the first payment to the sinking fund shall be made within twelve months if by yearly repayments or within six months if by half-yearly repayments from the time of borrowing the sum in respect of which the payment is made.

Sinking
fund.

30.—(1) If the Corporation determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such sinking fund shall be formed and maintained either—

(A) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is herein-after called a “non-accumulating sinking fund” ; or

(B) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed A sinking fund so formed is herein-after called an “accumulating sinking fund.”

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately

invested in statutory securities the Corporation being at liberty A.D. 1904.
from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(4) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Corporation :

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Corporation in addition to the payments provided for by this Act.

(7) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Corporation shall increase the payments to such extent as the Board may direct.

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(8) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed the Corporation may with the consent of that Board discontinue the annual payments to such sinking fund until the Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Local Government Board may determine.

Proceeds of
sale of sur-
plus lands.

31. So long as any lands remain to be acquired by the Corporation under the authority of this Act they may so far as they consider necessary apply any capital moneys received by them on resale or exchange or by way of fine or premium on the grant or renewal of leases as aforesaid in the purchase of lands so remaining to be acquired but as to any capital moneys so received and not so applied the Corporation shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment by this Act provided except to such extent and upon such terms as may be approved by the Local Government Board Provided that the amount to be applied in the purchase of land under this section shall not exceed the amount for the time being unexhausted of the borrowing powers conferred by

this Act for the acquisition of such lands Provided further A.D. 1904.
that the borrowing powers by this Act authorised for the
acquisition of such lands shall be reduced to the extent of
the amount applied in the purchase of lands under the provisions
of this section.

32. If the Corporation out of the proceeds of the sale or disposition of lands or other moneys received on capital account repay any principal moneys borrowed under the powers of this Act the payments to any sinking fund applicable to the repayment of such principal moneys may be reduced to such extent and upon such terms as may from time to time be approved by the Local Government Board. Sinking fund may be adjusted in certain events.

33. A person lending money to the Corporation under this Act shall not be bound to inquire as to the observance by the Corporation of any of the provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof. Protection of lender from necessity of inquiry.

34. The Corporation shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Corporation shall be sufficient discharge to the Corporation in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Corporation have had express or implied notice of any such trust or of any charge or encumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register. Corporation not to regard trusts.

35.—(1) Any mortgagee of the Corporation by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver The amount of arrears of principal due to such mortgagee or in the case of a joint application by two or more mortgagees to such mortgagees collectively to authorise the appointment of a receiver shall not be less than one thousand pounds in the whole. Appointment of receiver.

(2) The application for the appointment of a receiver shall be made to the High Court.

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Power to re-borrow.

36. If the Corporation pay off any money borrowed by them under this Act otherwise than by instalments or by means of a sinking fund or out of money received on capital account not being borrowed moneys they may re-borrow the same but all moneys so re-borrowed shall be repaid within the prescribed period and shall be deemed to form the same loan as the money originally borrowed and the obligations of the Corporation with respect to the repayment of the loan and to the provision to be made for such repayment shall not be affected by reason of such re-borrowing.

Return to Local Government Board as to repayment of debt.

37.—(1) The town clerk shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the town clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

(2) If it appears to the Local Government Board by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart

any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

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38. All moneys borrowed by the Corporation under the powers of this Act shall be applied only to the purposes for which they are authorised to be borrowed and to which capital is properly applicable.

Application of money borrowed.

39. Any expenses of the execution by the Corporation of this Act with respect to which no other provision is made may be defrayed by the Corporation out of the revenue of their water undertaking and so far as such revenue may be insufficient out of the district fund and general district rate.

Expenses of execution of Act.

40. The provisions of the Municipal Corporations Acts relating to the keeping and auditing of accounts and the accounts kept of sums of money received and paid under those Acts shall extend to the keeping and auditing of accounts and to the accounts kept of sums of money received and paid under this Act.

Audit of accounts.

41.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

Inquiries by Local Government Board.

(2) The Corporation shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

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Authentica-
tion and
service of
notices.

42. --(1) Where any notice or demand under this Act or under any Local Act Provisional Order or byelaw for the time being in force within the borough requires authentication by the Corporation the signature of the town clerk or other duly authorised officer of the Corporation shall be sufficient authentication.

(2) Notices demands orders and other documents required or authorised to be served under this Act or under any Local Act Provisional Order or byelaw for the time being in force within the borough may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served. Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their principal office or place of business.

Costs of Act.

43. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for and obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation and may be paid in the first instance out of any moneys in their hands but shall be charged to and recouped by the moneys which the Corporation are authorised to borrow under the powers of this Act.

Printed by EYRE and SPOTTISWOODE,

FOR

T. DIGBY PIGOTT, Esq., C.B., the King's Printer of Acts of Parliament.

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